GS FOUNDATION (2023-24)
Governance
HANDOUT 02:
Role of Civil Services in Democracy

Role of Civil Services in Democracy

- **Definition - Civil service is a body of professional full-time officials employed in civil affairs of the state in a non-political capacity.**
- **History & Classification of Civil Service**
  - ✓ **Kautilya's Arthashastra (Amatya); British Era (1773 – 1935) ; All India Services , Central services & State Services**
- **All India Services**
  - ➢ **Objectives & Merits**
    - a) **Preserving national unity & integrity**
    - b) **Uniform standard of administration**
    - c) **Neutrality & Objectivity**
    - d) **Competence, efficiency & Professionalism**
  - ➢ **Demerits**
    - a) **Against federalism**
    - b) **Demoralise state civil service**

Role of Civil Services in Democracy

- Features
  - ✓ Body of professionals
  - ✓ Impartial selection
  - ✓ Regular remuneration
  - ✓ Chain of command
  - ✓ Principle of neutrality & Anonymity
  - ✓ Integrity & Honesty
  - ✓ Respect to code of conduct

Role of Civil Services in Democracy

- Functions of Civil Service in India
  - ✓ Law Formulation & Implementation
  - ✓ Subordinate Legislation
  - ✓ Protective Functions & Service delivery
  - ✓ Disaster Management
  - ✓ Administrative adjudication
  - ✓ Link Channel between people & government
  - ✓ Continuity in Governance
  - ✓ Facilitator, regulator & catalyzer of change [Post-Liberalization]
  - ✓ Nation Building

Role of Civil Services in Democracy

- Key Issues in Civil Service [2nd ARC]
  - ✓ Insulating civil servants from political interference
  - ✓ Requirement for domain expertise (Specialist)
  - ✓ Lack of Transparency & Accountability
  - ✓ Lack of Citizen-Centric Administration
  - ✓ Process orientation / compliance
  - ✓ Rigid Chain of Command
  - ✓ Poor public service values & ethics

Role of Civil Services in Democracy

Relationship between Political Executive & Civil Servants

- Relationship should be defined by Neutrality [Mr. Patel]
- What does it mean by Neutrality?
  - ✓ Independence of thought & objective
  - ✓ Honest & Objective advice
  - ✓ Speaking truth to power
- Factors that affects Neutrality?
  - ✓ Personal & Party interest
  - ✓ Fear of Repercussion
  - ✓ Lack of values & training
  - ✓ Lack of Pride & Poor Work culture [E.g., Party gate Incidence in UK]
  - ✓ Political & Bureaucratic corruption

Role of Civil Services in Democracy

Relationship between Political Executive & Civil Servants

- Problems associated with lack of Neutrality
  - ✓ Erodes Trust between Political & Permanent Executive
  - ✓ Affects the developmental process
  - ✓ Further perpetuate bias
  - ✓ Erodes civil service values – Integrity; Honesty; Esprit de corps; spirit of service etc.
- Way Forward
  - ✓ Equal responsibility of ministers & civil servants;
  - ✓ Amendment to PCA, 1988 – "abuse of authority or unduly favouring or harming someone"
  - ✓ Cooling off Period [Election Commission of India]
  - ✓ Code of Ethics for Civil Servants [2nd ARC]
  - ✓ Civil Services Board [2nd ARC]

Role of Civil Services in Democracy

How the Traditional Bureaucratic Structure & Culture affects socio-economic development

- ✓ Process Orientation than results [Delay in decision making; policy paralysis]
- ✓ Complex Procedures [MCA 21 Project]
- ✓ Over Centralisation [Rigid Hierarchy – No level Jumping]
- ✓ Size of ministries & Departments
- ✓ Lack of Transparency & Accountability [Official Secrets Act, 1923]
- ✓ Attitude of Master [Glorification of Civil Service]
- ✓ Work Culture
- ✓ Generalist Dominance [2nd ARC – more role to Specialist]

Role of Civil Services in Democracy

Practice Question

1. "Traditional bureaucratic structure and culture have hampered the process of socio-economic development in India." Comment. [2016]

Role of Civil Services in Democracy

Lateral Entry in Civil Service

- **Appointing someone into certain position from outside the service**

Negatives of Lateral Entry

- **Compromising on civil service values**
  - ✓ **Example – Neutrality, impartiality, etc.**
- **Spoil System**
- **Influence by private sector on govt. policies**
- **Low level efficiency correlated to environmental factors**
  - ✓ **Example – Political interference, process compliance, welfare orientation etc.**
- **Lack of field experience**

Role of Civil Services in Democracy

Lateral Entry in Civil Service

Advantages & Challenges

- Specialisation & domain expertise
- Foster competitive spirit
- Contractual based employment mayn't attract the best talents.

Recommendations of 2nd ARC

- Institutionalization of lateral entry.
- Domain specific training and experience through deputation to private Sector / PSUs.

Role of Civil Services in Democracy

Civil Service Reforms [2nd ARC]

➢ **Capacity building**

- Mandatory training at all levels.
- Mid-career training
- Few specialised institutes to be developed through proper infrastructure.
  - ✓ Example – LBSNAA, SVPNPA for Group A officers. ISTM (Institute of Secretariat Training and Management) – for Group B and C officers.
- mid-level management – specialisation/domain specific training
- Deputation to outside government agencies

➢ **Motivating civil servants**

- National Awards for good works.
  - ✓ Example – PM award for excellence in Public Administration.
- Priority in foreign assignments

Role of Civil Services in Democracy

Civil Service Reforms [2nd ARC]

- Accountability (2 reviews)
  - ✓ end of 14 years of service
  - ✓ end of 20 years of service - compulsory retirement.
- Disciplinary proceedings of Civil Servants
  - ✓ Amendment to Art. 311
- Civil Service Bill should be introduced
  - ✓ Code of ethics for civil servants.
  - ✓ Integrity, impartiality, commitment, accountability, devotion to duty, exemplary behaviour.
  - ✓ Recruitment and service conditions
  - ✓ Independent audit of these recruitment process.
  - ✓ Appointment to higher levels – Central Civil Service Authority (CCSA)
    - Composition: 5 members – including PM and Leader of Opposition.
    - Fixed tenure for all these officers

Role of Civil Services in Democracy

Practice Question

2. Institutional quality is a crucial driver of economic performance. In this context, suggest reforms in Civil Services for strengthening Democracy.

Role of Civil Services in Democracy

Mission Karmayogi [National Program for Civil Service Capacity Building]

Objective :

- aims to transform capacity-building in the bureaucracy through institutional and process reforms
- 'Mission Karmayogi' envisages to prepare Indian civil servants for the future by making them more creative, constructive, imaginative, innovative, proactive, professional, progressive, energetic, enabling, transparent and technology-enabled.

Focus Areas

- Domain Knowledge & Administrative capacity
- Right Recruitment & capacity building
- Specialist to be given more role
- lateral induction of personnel from private sector

Role of Civil Services in Democracy

Mission Karmayogi [National Program for Civil Service Capacity Building]

How will it be implemented?

- **Integrated government online training [iGOT platform]**
- **Evaluation of officers based on the courses**
- **Assignment of roles & responsibilities**

Advantages

- **Rule based to role based**
- **Domain Specific**
- **Skill to meet challenges of New India**
- **Adoption of Best practices**

Role of Civil Services in Democracy

Civil Services – Continuity & Change

- **Continuity**
  - ✓ Meritocracy
  - ✓ Rule Orientation
  - ✓ Hierarchy
  - ✓ Neutrality & Anonymity
- **Change**
  - ✓ Delegation of Authority
  - ✓ Regulatory Functions
  - ✓ Specialisation
  - ✓ Contractual employment & Exit

Role of Civil Services in Democracy

Practice Question

3. Civil Services today in India is characterized by both continuity and change. Comment

All The Best!

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